

Arguing cause. On the day on which the subpoena to hear judgment is returnable, the party, who has set down the cause, calls it on, and can insist on its being argued in its turn, next after the other causes which stand for that day. If not called on, it is put down to the foot of the paper. Care should therefore be taken to have a cause called on, on the day for which it is set down, and, if the opposite party applies for and obtains a postponement under any special circumstances, get some other day peremptorily fixed by the Court for the argument. The Court has recently determined, that if, when a cause is called on in its turn, the parties are unprepared, it is to be struck out of the paper, and not again set down except on a special application, and on good cause shown.

Question of necessity for time which elapses after publication and hearing.

It is submitted, that the month's time, during which, under the above Order, the defendant must wait before he can set down the cause, which it may often be desirable to do, instead of moving to dismiss, is too long; and that the practice which has obtained, namely of any party to the cause setting it down as soon as he pleases, after publication passed, would be more speedy and convenient. And also, that there is no necessity for the month's time between the setting down the cause and the day of argument. The subpoena, as has been seen, need be served only seven days before the hearing, although it must be taken out a month before. The plaintiff under this practice can cause two months to elapse after publication before the hearing.

January, 1845.
116.

The above Order 66 is like the 116th English Order of 1845, except that instead of the word *parties* the word *plaintiff* is used, and it has been held that under the English Order the co-defendants need not be served by the defendant who set the cause down. (6 Maddock 193). Our Order being differently worded, the defendant, who sets the cause down, must serve all the parties, defendants as well as plaintiff.

Proceedings on objections for want of parties.

When the answer objects to the frame of the bill for want of proper parties Plaintiff or Defendant, the case

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